AREA BOARD OF ZONING APPEALS OF TIPPECANOE COUNTY
MINUTES OF A PUBLIC HEARING

DATE .....May 27, 2026
TIME ..... 6:00 P.M.
PLACE .....COUNTY OFFICE BUILDING
20 N. 3RD STREET
LAFAYETTE, IN 47901

This meeting was held in-person.

MEMBERS PRESENT			MEMBERS ABSENT	STAFF PRESENT
Ed Butz	Brad Hallberg	Gary Schroeder	Robert Novak	Amanda Esposito
Steve Clevenger	Jennifer Page		Tim VanderPlaats	Nathan McBurnett
				Eric Burns, Attorney

The Area Board of Zoning Appeals of Tippecanoe County public hearing was held in-person on the 27th day of May 2026 at 6:00 P.M., pursuant to notice given and agenda posted as provided by law.

Steve Clevenger called the meeting to order. Attorney Eric Burns conducted roll call.

I. APPROVAL OF MINUTES

Gary Schroeder moved to approve the minutes from the April 22, 2026 ABZA public hearing as submitted. Ed Butz seconded. The minutes were approved by a unanimous voice vote.

II. NEW BUSINESS

Nathan McBurnett, APC staff, stated that **BZA-2229 LAWRENCE HITZE** had requested a continuance to the June 24, 2026 BZA hearing. There was an issue with **BZA-2230** in which the public notice requirement of 21 days was not met, instead it had been submitted 20 days before. The board had the option to vote to continue the case or vote to relax the bylaw requirement and hear the case.

III. PUBLIC HEARING

Gary Schroeder moved that there be incorporated into the public hearing portion of each application to be heard and to become part of the evidence, the Unified Zoning Ordinance, the Unified Subdivision Ordinance, the Comprehensive Plan, the By-laws of the Area Board of Zoning Appeals, the application, and all documents filed therewith, the staff report and recommendation on the applications to be heard, and responses from the checkpoint agencies. Ed Butz seconded, and motion carried by unanimous voice vote.

Gary Schroeder moved to continue **BZA-2229 LAWRENCE HITZE** to the June 24th ABZA public hearing agenda. Ed Butz seconded, and the motion carried by unanimous voice vote.

Steve Clevenger read the meeting procedures.

Gary Schroeder moved to hear and vote on **BZA-2225 OMEGA CHAPTER OF PI KAPPA PHI**. Ed Butz seconded.

BZA-2225 OMEGA CHAPTER OF PI KAPPA PHI
Petitioner and owner, represented by Ryan Munden of RTS Law, requests the following variances for construction of a new fraternity house:

1. To increase the building height from the maximum allowed 40’ to 72’5” (UZO 2-11-11);
2. To increase the building coverage from the maximum allowed 40% to 70% (UZO 2-11-7);
3. To reduce the vegetative coverage from the minimum required 30% to 9.7% (UZO 2-11-7).
4. To reduce the total parking spaces from the minimum required 41 spaces to 27 spaces (UZO 4-6-3);

5. To reduce the front (west) setback from the minimum required 10' (averaged) to 3'6" (UZO 4-4-1);
6. To reduce the rear (east) setback from the required 25' to 20'10" (UZO 2-11-9).

The R3W-zoned property includes Lots 6, 7 and 8 of Roberts Addn, commonly known as 330 N Grant Street, West Lafayette, Wabash 19 (NE) 23-4. *Continued from April 22nd ABZA meeting at petitioner's request (first continuance).*

Amanda Esposito, APC staff, introduced a set of variances requests for the construction of a new fraternity house. The property was currently zoned R3W and surrounded by other R3W and agricultural zones and Purdue campus, which was not subject to local zoning rules. The site currently had the Omega Chapter of Pi Kappa Phi, which was built in 1928 and it was staff's opinion was that the structure had some historical significance. Six variances had been filed that would allow the building to be taller than permitted, 72.5 ft instead of 40 ft., have an increased lot coverage, reduced vegetative coverage, fewer parking spaces, and reduced setbacks along Grant Street and the rear property line. The current structure occupied a relatively small footprint centered between the front and rear property lines and the new building would be shifted towards Grant Street and stretch the width of the lot. She reviewed the staff report's findings and stated that staff recommended denial of variance one for height, variance two for building coverage, variance three for vegetative coverage, variance number five for the front setback, and variance number six for the rear setback. Staff recommended approval for variance number four for the parking variance.

Steve Clevenger called for the petitioner or the petitioner's representative to make a presentation.

Ryan Munden, RTS Law, 250 Main Street, Lafayette, on behalf of the petitioner, stated that the project had been presented to the joint board on April 21st. and both Purdue University and West Lafayette City had expressed support for the variances and project. He concurred with staff on variance four for reduced parking and ballot items 1, 2, and 3. He spoke about the age of the house, the expensive maintenance costs, and the living condition challenges. The current house lacked adequate air conditioning, heating, and bathroom facilities. He spoke about the fraternity's philanthropic activities and their desire to build an ADA compliant facility that would also be able to house all members for events. The purpose of the project was to tear down and rebuild a fraternity to improve livability, accessibility, and safety. Strict application of the terms of the zoning ordinance would result in the status quo for the fraternity, which was not currently sustainable, and would result in an eventual demise of the fraternity. He stated the hardship involved was not self-imposed and asked for approval on the project.

Steve Clevenger asked if anyone wished to speak in favor or in opposition of the petition.

Chad Spitznagle, West Lafayette Housing Director, confirmed that West Lafayette City had requested the variance process, rather than the PD process. There was a history of other fraternities and sororities going through the variance process similar to the proposed project.

Steve Clevenger asked if the Board had any questions or comments.

Jennifer Page asked about the reason behind having six different zoning classifications in a small area.

Amanda Esposito answered that most of the multi-family zoning had been in place for years and as individual property owners decided they couldn't do what they wanted within their zoning district, they would apply for a rezone.

Jennifer Page asked about the use of precedence based on the other Greek housing petitions and how frequently those were approved.

Amanda Esposito responded that 2-3 fraternity or student co-op variances were heard last year, and she believed they all were approved.

Eric Burns clarified that the board didn't have to follow precedence, but they were fulfilling a judicial role and therefore had discretion in deciding what was considered relevant.

Steve Clevenger added that he believed the area was part of the West Lafayette Plan and most of the PDs were individual rezones that either couldn't be done by right or would have required a lot of variances also.

Jennifer Page asked if Purdue was able to tear down and build on the church property near the proposed site.

Amanda Esposito confirmed that they could because Purdue was exempt from local zoning code.

Jennifer Page asked if other designs were considered that did not require such extreme variances.

Matt Clark, Omega Chapter Pi Kappa Phi Housing Corporation President, 1511 Persimmon Place, Noblesville, talked about how the design was based on being competitive with other spaces and expectations from students for their living spaces and amenities. More students rushed Pi Kappa Phi than any other fraternity on campus and the current house could not fit all 130+ members for events. In trying to meet the parking requirements, part of the parking would be under the building. The roof design would help screen mechanicals from the view of campus and the aesthetic appeal of the new building would be similar to the current one.

Jennifer Page asked if a representative from Purdue was present.

Matt Clark, Omega Chapter Pi Kappa Phi Housing Corporation President, 1511 Persimmon Place, Noblesville, stated that he had spoken with Nathan Manges, who was over real estate, as well as Jay Wasson, who was over facilities.

Steve Clevenger reiterated that this proposal had been brought before the Purdue and West Lafayette joint board.

Jennifer Page asked about the differences had the petition been an apartment building.

Amanda Esposito answered that anything in a multi-family zoning district would have had the same standards, but PDs were different. In a planned development, the ordinance didn't apply and every standard was negotiated i.e. setbacks, height, density, building materials, color.

Steve Clevenger added that there were several categories: PD non-residential, PD residential, and PD mixed. The petition could have gone through the PD process if staff or West Lafayette had desired. There were usually benefits and concessions from both sides with a PD.

Jennifer Page had questions on the position of the right-of-way.

Amanda Esposito showed an aerial photo indicating where the right-of-way was located.

Steve Clevenger called for a ballot vote.

Attorney Eric Burns collected the ballots. The Board voted 5-Yes to 0-No, approving variance #1.

Yes-Vote			**No-Vote**
Ed Butz	Brad Hallberg	Gary Schroeder	
Steve Clevenger	Jennifer Page		

Attorney Eric Burns collected the ballots. The Board voted 4-Yes to 1-No, approving variance #2.

Yes-Vote		**No-Vote**
Ed Butz	Brad Hallberg	Jennifer Page
Steve Clevenger	Gary Schroeder	

Attorney Eric Burns collected the ballots. The Board voted 5-Yes to 0-No, approving variance #3.

Yes-Vote			**No-Vote**
Ed Butz	Brad Hallberg	Gary Schroeder	
Steve Clevenger	Jennifer Page		

Attorney Eric Burns collected the ballots. The Board voted 5-Yes to 0-No, approving variance #4.

Yes-Vote			**No-Vote**
Ed Butz	Brad Hallberg	Gary Schroeder	
Steve Clevenger	Jennifer Page		

Attorney Eric Burns collected the ballots. The Board voted 5-Yes to 0-No, approving variance #5.

Yes-Vote			**No-Vote**
Ed Butz	Brad Hallberg	Gary Schroeder	
Steve Clevenger	Jennifer Page		

Attorney Eric Burns collected the ballots. The Board voted 5-Yes to 0-No, approving variance #6.

Yes-Vote			**No-Vote**
Ed Butz	Brad Hallberg	Gary Schroeder	
Steve Clevenger	Jennifer Page		

Eric Burns stated that the bylaws provided 21 days for public notice and requested details on the issue of public notice for the remaining case which had been posted 20 days prior.

Nathan McBurnett stated that state requirements allowed for 10 days minimum, so 20 days was within state statute. The sign was posted well before the 21-day minimum, but the letters were delayed 1 day.

Eric Burns asked if there had been letters or comments from the public.

Nathan McBurnett confirmed there had been no contact from the public.

Eric Burns stated that the board had the right to waive their own bylaws

Gary Schroeder moved to waive the bylaw deadline of 21 days and find that 20 days' notice given was in substantial compliance with the bylaws. Eric Butz seconded, and the motion carried by unanimous voice vote.

Gary Schroeder moved to hear and vote on **BZA-2230 ROBERT DARNELL**. Ed Butz seconded.

BZA-2230 ROBERT DARNELL
Petitioner and owner, represented by Casey Mast of Mast Services of Lafayette, LLC, requests the following two variances to allow construction of an attached front porch:

1. To allow a reduction in the front setback from the required 25' to 23' (UZO 2-1-7); and
2. To allow a side setback (east side) of 2' instead of the required 6' to legitimize the existing house (the proposed porch side setback would be 5.19') (UZO 2-1-9).

The R1-zoned property is Lot 34 of Lakeroad subdivision, Part 2, commonly known as 3717 N. Connie Drive, Fairfield 02 (NW) 23-4.

Nathan McBurnett, APC staff, showed a site plan for two proposed additions to a house, a sunroom on the back and a porch on the front. One of the variance requests was to legitimize an existing setback on

the east side and the other was to allow for a porch to be added to the front. He reviewed the findings of the staff report and staff had recommended denial of both requests.

Steve Clevenger called for the petitioner or the petitioner's representative to make a presentation.

Casey Mast, MSL Construction, 3430 Maple Point Drive, Lafayette, on behalf of the petitioner, referenced photos of his client's home where he intended to add a sun porch and concrete patio around a pool and a foundation for a porch in the front.

Steve Clevenger asked if anyone wished to speak in favor or in opposition of the petition. There were none.

Steve Clevenger asked if the Board had any questions or comments.

Steve Clevenger asked how a house built in 1985 could have had a 2 ft. setback.

Amanda Esposito answered that often when inspectors did a site visit to look at building code issues, the property lines would no longer be marked so they weren't able to notice if the building measurements were off.

Steve Clevenger called for a ballot vote.

Attorney Eric Burns collected the ballots. The Board voted 5-Yes to 0-No, approving variance #1.

Yes-Vote			**No-Vote**
Ed Butz	Brad Hallberg	Gary Schroeder	
Steve Clevenger	Jennifer Page		

Attorney Eric Burns collected the ballots. The Board voted 5-Yes to 0-No, approving variance #2.

Yes-Vote			**No-Vote**
Ed Butz	Brad Hallberg	Gary Schroeder	
Steve Clevenger	Jennifer Page		

Steve Clevenger stated unless any member has an objection, the chair will order the findings of each member casting a vote for the majority decision of the Board to be the collective findings of the Board in support of the decision of the Board. Hearing none, it was so ordered.

IV. ADMINISTRATIVE MATTERS

1. Planning Pointers: Navigating Easements & Rights-Of-Way

Amanda Esposito presented the planning pointer:

> "A number of the requests heard tonight were for setbacks, so we thought it would be timely to discuss the difference between rights-of-way, which have setbacks, and easements, which don't.
>
> The main difference between these two is property lines: a right-of-way line creates a boundary between an area of land that is owned by a jurisdiction which the public has a right to access and an area of land that is owned by a private entity. An easement is an area of land on privately owned property which certain entities have been granted access to use for specific purposes. Easements are located within a private property line; sometimes they cross that line to continue into the ROW and onto another private property. Such is the case with utility easements. Those electric wires don't just stop at the edge of a property!
>
> This board sees both ROW and easements labelled on site plans, so what does that really mean for the types of variances you are deciding? Well, setbacks are a required amount of feet

between a property line and a structure on the private property. For all platted lots in the county, the property line along the public street is the ROW line. It delineates the point where the private property ends and the publicly owned street begins. It isn't always the edge of the pavement. The width of a ROW is determined by the road classification, which is set by the adopted *Thoroughfare Plan*; the setback required is also determined by the road classification. The higher trafficked roads have a larger ROW width and a larger setback – they typically have higher speeds for the travelling public, so the larger distance is for safety purposes in the event of an accident.

In no case may someone build within the ROW, other than the jurisdiction building road, sidewalk, trail or utility infrastructure. Signs are also not allowed within the ROW, even temporary signs, like our recent primary election with the campaign signs – not allowed.

Roads can have their classification change over time, as new roads are created, changing the traffic patterns for that area. If a road goes up in classification, the required ROW width has not been set aside. Perhaps it went from a local road to a collector, which requires more ROW. If any property along that street goes through a division process, such as a major/minor subdivision, or a parcelization, they would be required to dedicate the additional land for their half-width of ROW. Since setbacks are also tied to the road classifications, sometimes these have changed after the property was improved. We see this quite often, actually, especially in the older sections of our cities. The structures in these areas were built before modern day standards for ROW widths and setbacks, so they were often built much closer to the street. If those property owners decide to add on to their structure, they must do so in compliance with current rules, which sometimes leads to multiple variances to bring it the property into conformity.

The opposite can also occur – a road which used to be a higher classification, like a primary but has been bypassed by a newer road (231, for example) – had a very large ROW width and setback requirement, which is no longer necessary after the re-classification. The ROW was dedicated and used for the road for however many years before the new road came along, so those property lines still exist, with the very wide ROW around a road that no longer serves the same volume of traffic.

ROW can be vacated by the owner jurisdiction. Some examples of this are when a dedicated ROW doesn't get improved – the road never gets built, for whatever reasons. It's still owned and [supposedly] maintained by the jurisdiction; however, in most of these cases, it's used by the adjoining property owners. Another example is for redevelopment of multiple lots. Those lots are often divided by ROW, either an alley or a public street. For some of our larger developments, they proposed a large enough structure that it would cross the ROW line onto the neighboring property. The corner of State Street and River Road in West Lafayette is a good example of old ROW that wasn't needed anymore. River Road used to have a huge ROW. The proposed development on that corner had the structure built up against the street. In order for that development to be allowed, the ROW needed to be reduced. It was during those negotiations, by the way, that the City of West Lafayette found out they didn't own the ROW, the state did. The state ended up giving it to the city, who then vacated portions of it to those property owners along the street who, in turn, sold it to the developer. It was complex, and took a very long time to not only figure out but for the transfer!

Now for the easement portion. Easements are private contracts that allow a particular user to do a particular thing on private property that doesn't belong to them. They take several different forms, depending on the use needed: ingress/egress, utilities, drainage, or public access to name a few. There is always a legal document that creates the easement, and sometimes it also explains in text what the easement is for, who the owner is, and who is required to maintain it. These more detailed easements are common for shared driveways, for instance. There are numerous properties, mostly in rural areas, that do not have frontage on a public road. In order for those owners to access their property, an easement would have been granted for them to use a particular section of land as a driveway. Sometimes it's shared with the property owner who granted that easement, sometimes there are multiple driveways. Access onto a public road is always determined by the jurisdiction, whether it's Count Highway or a City/Town. When APC

divides land, access is part of that review. We ensure there is a legal method for all property owners to access their land.

Utility easements are another common type, granted to the companies providing the service, whether it's public sewer, water, or electric. Their facilities, or infrastructure, are often underground (sometimes overhead), and they need the ability to access those facilities for maintenance and repair. On some properties, the owners are completely unaware of a utility easement until that utility comes knocking. Sometimes it means a fence or an outdoor garden shed need to be removed so they can get to their infrastructure. Fences and smaller sheds often don't require a permit for construction, so it is entirely up to a property owner to research their property before locating those types of structures. Definitely a case of "buyer beware" – know what you have on your property! Easements are required to be shown on final plats, parcelization surveys, and the like, so it is an easy thing to look up in the County Recorder's Office.

For structures that require a permit for construction, the permitting office won't grant approval until they know the structure is allowed in that location. If the location is shown to be in an easement, the property owner can try to get approval from the easement holder; the answer is sometimes yes, sometimes no. Sometimes, a utility easement is platted, but the utility ends up installing their lines elsewhere. So they may not need that particular easement any longer.

For APC staff who get asked about building in an easement, the safest answer is "don't do it". If that is the only land available to an owner for their proposed construction, they better check in with the easement holder before starting what could be a much more costly endeavor than they had planned. If a variance is being heard for proposed construction in an easement, staff might consider recommending approval if the owner has written approval from the easement holder, and of course the request meets the other variance tests.

Since an easement line is not necessarily a property line, there are no setbacks required. Most easements grant extra land to the holder, for various reasons, but also to ensure structures aren't placed too close to their actual needed land. They often need sufficient space to access those underground utilities, without worrying about damaging a structure. Same thing with ingress/egress easements – they are often around 20' wide, but the driveway itself is not that wide. It's just a space within which the driveway may be built.

Easements may also be covered within an HOA's covenants and restrictions document. So even if an owner gets approval from the BZA, and possibly even approval from the permitting office, their HOA could come after them for building in that easement.

The final image on the screen shows what looks like several very large residential lots at the end of a cul-de-sac. However, the back portion of those lots is taken up by a conservation easement – these are likely heavily wooded properties in an environmentally sensitive area, where the developer or even the County Surveyor wanted to preserve the natural habitat as much as possible. It just goes to show that even if you have the largest lot in the neighborhood, it doesn't mean you will have the largest house or be able to use the entire lot for structures, and so on!"

Jennifer Page asked where easements could be obtained.

Amanda Esposito answered that they were all recorded in the Recorder's office.

Jennifer Page asked if easements were assigned to a specific entity and whether they could be assigned to more than one entity.

Amanda Esposito answered that they were assigned to a specific entity, for example if West Lafayette City needed to access their sewer infrastructure on a private property. Many platted lots have drainage and utilities built into one easement.

There was further discussion on easements and rights-of-way.

V. ADJOURNMENT

Gary Schroeder moved to adjourn. The meeting adjourned at 7:22 PM.

Respectfully submitted,
Danielle Bistline
Recording Secretary

Reviewed by,



Ryan O'Gara
Executive Director